

Sunil Kumar Srivastava v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 July 2014 · WRIT - C No. - 39170 of 2014 · **Writ disposed; consider Clause 4.4 application within six weeks.**

HEADNOTE

A tenant supplied through the landlady's sub-meter, after she sought permanent disconnection, was relegated to Clause 4.4 of the Electricity Supply Code, 2005, including an indemnity bond. The Court did not mandamus a connection; it directed the licensee to consider the application and pass an appropriate order within six weeks.

FACTUAL SUMMARY

The petitioner, a tenant, had been supplied electricity through a sub-meter from the landlady's connection. The landlady had left for Kolkata and applied for permanent disconnection, leaving him without supply. He sought a writ for independent connection. Counsel for the Electricity Department stated that the claim would be considered if he completed the formalities under Clause 4.4 of the Electricity Supply Code, 2005, including an indemnity bond.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Where a tenant seeks independent supply after the landlady applies for permanent disconnection, the licensee is to consider the occupant's application under Clause 4.4 of the Electricity Supply Code, 2005, including an indemnity bond, and pass an appropriate order; the Court does not itself grant the connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT OF THE TENANT TO A NEW CONNECTION ON MERITS

The Court directed consideration of the Clause 4.4 application; it did not decide whether a connection must be granted. ¶ 1